

24NNCV03745 24NNCV03745

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-13

Motion: MOTION TO BE RELIEVED

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Case Number: 24NNCV03745 Hearing Date: July 13, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

BANC OF CALIFORNIA,

Plaintiff(s),

vs.

DELTERRA
REAL ESTATE SERVICES, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV03745

[TENTATIVE]

ORDER RE: MOTION TO BE RELIEVED

Dept.

3

8:30

a.m.

July 13,

2026

Edward

Morales of Shumener, Odson & Oh LLP seeks to be relieved as counsel of record for defendants Luis D. Rojas, DeTerra Construction Company, Inc., and DeTerra Real Estate Services, Inc. (collectively, "Defendants") on grounds that irreconcilable differences have arisen. Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

Counsel's Motion complies with

California Rules of Court, Rule 3.1362. The Court notes that trial in this matter is not yet set and no prejudice will result from granting this motion.

Accordingly, this unopposed motion to

be relieved is GRANTED and effective upon filing a proof of service showing

service of this Order on Defendants and all parties who have appeared.

The Court additionally sets an OSC re:

Proof of Service of Order Relieving Counsel for _____ at 8:30 a.m. THE COURT EMPHASIZES THE IMPORTANCE OF THIS OSC DEADLINE AS COUNSEL WILL NOT BE RELIEVED UNTIL THIS PROOF OF SERVICE IS FILED.

Moving party to give notice.

Dated

this 13th

day of July 2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.